

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GERALD PLUVOISE

Index No.

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, 10AK, 10AK
PRODUCTIONS, LLC, THOMAS
TRIPOULAS, P.O. THOMAS DONEGAN,
SHIELD NO. 21717, Individually and in
his official capacity and P.O.s "JOHN DOE
#1-10, Individually and in their Official
Capacity, (the name being fictitious, as the
true names are presently unknown)

Defendant.
-----X

Plaintiff designates Queens as the place of trial.

The basis of the venue is defendant's business address

Plaintiff resides at: 453 W. 17th Street, New York, NY 10011

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
April 27, 2015

FRANZBLAU DRATCH, PC
Attorney for Plaintiff

By: Brian M. Dratch, Esq.
233 Broadway, Suite 1800
New York, New York 10007
(212) 571-1808

Defendants' Address:

The City of New York
100 Church Street
New York, New York 10007

1OAK
453 W. 17th Street
New York, New York 10011

Thomas Tripoulas
c/o 1 Oak
453 W. 17th Street
New York, NY 10011

P.O. Thomas Donegan, Shield, No 21717
One Police Plaza
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GERALD PLUVIOSE,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, 10AK, 10AK
PRODUCTIONS, LLC, THOMAS TRIPOULAS, P.O.
THOMAS DONEGAN, Shield No. 21717, Individually
and in his Official Capacity, and P.O.'s "JOHN DOE" #1-
10, Individually and in their Official Capacity (the name
John Doe being fictitious, as the true names are presently
unknown),

Defendants.
-----X

Plaintiff GERALD PLUVIOSE, by his attorney, FRANZBLAU DRATCH, P.C.,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

2. Plaintiff GERALD PLUVIOSE is an African-American male and has been at all relevant times a resident and citizen of the city of Manhattan Beach, in the State of California.

3. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

5. Defendant, 1OAK, is a high-end Chelsea nightclub located at 453 West 17th Street, New York, New York 10011.

6. Defendant, 1OAK PRODUCTIONS LLC, is a domestic limited liability company having its principal place of at 453 West 17th Street, New York, New York 10011.

7. Defendant, THOMAS TRIPOULAS, is an individual who was employed by defendant 1OAK, in the position of Manager, at all times relevant to this litigation.

8. At all times hereinafter mentioned, the individually named defendants P.O. THOMAS DONEGAN, and P.O.s "JOHN DOE" #1-#10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

9. At all times hereinafter mentioned the defendant police officers, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

10. Each and all of the acts of the defendant police officers alleged herein were done by said defendant officers while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

11. Each and all of the acts of the defendant police officers alleged herein were done by said defendant officers while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

12. On or about September 1, 2013, plaintiff GERALD PLUVIOSE was visiting New York City and was among a group of approximately eight or nine individuals invited to defendant 10AK nightclub by a friend of Plaintiff's named Joseph Vasold.

13. Based on information and belief, Mr. Vasold reserved a table at defendant 10AK for his group by giving his personal credit card and driver's license to defendant 10AK to secure his table and to pay the bill for drinks ordered at his table.

14. After socializing and drinking for a few hours, the individuals from the group left on their own accord, including Joseph Vasold, who left his credit card and driver's license with defendant 10AK to pay for the alcohol bill for his table.

15. At approximately 11:00pm, Plaintiff GERALD PLUVIOSE was the lone member of the group remaining at defendant 10AK when he was confronted by defendant THOMAS TRIPOULAS, manager of defendant 10AK.

16. At this time, defendant THOMAS TRIPOULAS, told plaintiff GERALD PLUVIOSE that he was immediately responsible for the entire \$3,778.18 alcohol bill for the table of Joseph Vasold despite the fact that plaintiff GERALD PLUVIOSE was an invited guest as Vasold had reserved the table, and that defendant 10AK was still in possession of Vasold's credit card and driver's license.

17. Based on information and belief, defendant 10AK knew that plaintiff GERALD PLUVIOSE was not responsible for the bill for Vasold's table yet defendant 10AK held plaintiff

and refused to allow him to leave until defendant P.O. THOMAS DONEGAN of the 10th Precinct arrived at the location.

18. Based on information and belief, plaintiff GERALD PLUVIOSE assisted in trying to contact Vasold by telephone so that the bill could be resolved. Additionally, defendant 1OAK was able to charge Vasold's credit card twice for \$1200 while plaintiff PLUVIOSE was still at defendant 1OAK and so the actual amount outstanding was only \$1378.18 at the time plaintiff was arrested.

19. Upon defendant P.O. DONEGAN's arrival, plaintiff GERALD PLUVIOSE was immediately placed in handcuffs by defendant P.O. DONEGAN and others. Defendants then went through plaintiff's pockets and removed plaintiff's debit card. Without plaintiff's permission or authority, defendants then ran plaintiff's debit card and attempted to charge plaintiff's card for the \$3778.18 amount.

20. At this date, time and place, despite having committed no criminal acts, or any other unlawful conduct, the defendants placed plaintiff GERALD PLUVIOSE under arrest and told him that he was being charged with a criminal offense for theft of services.

21. Despite having no evidence, or reason to believe that plaintiff intended to avoid services rendered, avoided or attempted to avoid payment for such services by an unjustified failure to pay, defendant officers processed plaintiff GERALD PLUVIOSE's arrest.

22. At his criminal court arraignment, plaintiff GERALD PLUVIOSE was charged with the misdemeanor offense of Theft of Services, in violation of Penal Law §165.15(2). The Criminal Court Complaint specifically stated that plaintiff received a bill for \$3,778.18. The presiding judge released plaintiff on his own recognizance after he had been in custody for approximately fifteen (15) hours.

23. At no time on September 1, 2013, did plaintiff intent to commit the offense of theft of services.

24. At no time on September 1, 2013, did defendants possess probable cause to arrest plaintiff.

25. At no time on September 1, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

26. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office.

27. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrests.

28. Specifically, defendants falsely and knowingly alleged that plaintiff intended to avoid payment for services that he agreed to pay in the amount of \$3778.18.

29. As a result of defendants' actions, plaintiff GERALD PLUVIOSE spent approximately fifteen (15) hours in police custody.

30. Despite defendants' actions, all charges against plaintiff GERALD PLUVIOSE were dismissed outright upon motion by the District Attorney on or about September 9, 2103 in New York County Criminal Court.

31. As a result of the foregoing, plaintiff GERALD PLUVIOSE sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FIRST CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "35" with the same force and effect as if fully set forth herein.

33. As a result of the aforesaid conduct by defendants, plaintiff GERALD PLUVIOSE was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

34. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SECOND CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" as if the same were more fully set forth at length herein.

36. Defendants created false evidence against plaintiff GERALD PLUVIOSE.

37. Specifically, defendants falsely and knowingly alleged plaintiff intended to avoid payment of services.

38. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office.

39. Defendants misled the prosecutors by creating false evidence against plaintiff GERALD PLUVIOSE and thereafter providing false testimony throughout the criminal proceedings.

40. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

41. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

44. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. maintaining an arrest quota placing undue pressure on officers to make arrests without probable cause;
- ii. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- iii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.

45. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- i. **Mazie Meredith v. City of New York**; United States District Court, Eastern District of New York, 09 CV 1220;
- ii. **Uriel Bonilla v. City of New York**; United States District Court, Southern District of New York, 09 CV 3563;
- iii. **Angel Figueroa v. City of New York**; United States District Court, Southern District of New York, 10 CV 2185;
- iv. **Angel Valentin v. City of New York**; United States District Court, Southern District of New York, 10 CV 5195; and
- v. **Osaigbovo v. City of New York**; United States District Court, Southern District of New York, 09 CV 4979.

46. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff GERALD PLUVIOSE.

47. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

49. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

50. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate corrections officers, and were directly responsible for the violation of plaintiff GERALD PLUVIOSE'S constitutional rights.

51. The acts complained of deprived plaintiff of his rights:

1. Not to be deprived of liberty without due process of law;

2. To be free from seizure and arrest not based upon probable cause;
3. To be free from unlawful search;
4. Not to have summary punishment imposed upon them; and
5. To receive equal protection under the law.

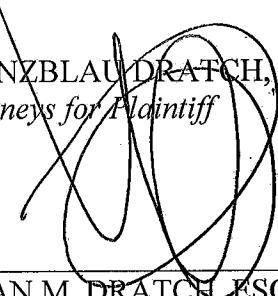
52. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff GERALD PLUVIOSE respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
April 27, 2015

FRANZBLAU DRATCH, P.C.
Attorneys for Plaintiff

BY: 
BRIAN M. DRATCH, ESQ.
The Woolworth Building
233 Broadway, Suite 1800
New York, N.Y. 10279
Tel (212) 571-18-8
Fax (973)992-7945
bdratch@njcounsel.com